

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, AUGUST 27, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 26, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0093810 JEFFERSON CAPITAL SYS. v. JOHNSON, JEREMY

Plaintiff's Motion for Judgment on the Pleadings

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading or based on facts which the court may judicially notice. (*Id.* subd. (d).) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.)

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Here, defendant's answer admits all of the statements in the complaint were true except for a challenge to the service of summons. However, the court subsequently denied defendant's motion to quash, service of summons is not an element of plaintiff's common counts cause of action, and the complaint states facts sufficient to constitute the common counts cause of action. Accordingly, plaintiff's motion for judgment on the pleadings is granted.

2. M-CV-0096560 ELGUINDY, MEYER & KOEGEL v. EVOLUTION COM

The motion to strike answer is dropped from calendar in light of the notice of settlement of entire case filed with the court on August 13, 2026.

3. M-CV-0097661 IH4 PROPERTY WEST LP v. ROUNDTREE, LOREN

Application for Further Stay of Execution of Judgment

Appearance of the parties is required on **August 27, 2026 at 8:30 a.m. in Department 3.**

4. S-CV-0047960 NOVAK, CHRISTOPHER v. THOMPSON, GREGORY

Plaintiffs' Motion for Reconsideration of Plaintiffs' Motion for Relief From Order

Plaintiffs move for the court to reconsider its May 11, 2026, ruling denying plaintiffs' motion for relief from order.

First, the motion is procedurally defective because it does not identify any new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).)

Second, even if the court considered the merits of the motion, the discretionary relief provision does not provide plaintiffs their requested relief. Notably, "the discretionary relief provision of section 473 only permits relief from attorney error fairly imputable to the client, i.e., mistakes anyone could have made. [Citation.] Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice." (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) Here, plaintiffs' counsel missing the statute of limitations is not imputable to the client and falls below the professional standard of care.